

26PSCV00984 26PSCV00984

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 26PSCV00984 Hearing Date: June 30, 2026 Dept: O

Tentative Ruling

PLAINTIFF'S

APPLICATION FOR WRIT OF POSSESSION AND TURN OVER ORDER is TBD/GRANTED effective upon clarification of notice. (The court will also seek clarification as to the proposed orders.)

Background

This case arises from the purported breach of a commercial security agreement.

On

March 17, 2026, Plaintiff NORTH MILL EQUIPMENT FINANCE LLC, a limited liability company and servicing agent for NORTH MILL CREDIT TRUST fka EFS CREDIT TRUST filed suit against Defendants B & CO FREIGHT, a California corporation and TIGRAN BABAKHANYAN, an individual (guarantor) for:

1.

Breach of Written Agreement

2.

Breach of Guaranty

3.

Claim and Delivery

4.

Conversion

5.

Account Stated

On

March 24, 2026, the instant writs for possession were filed.

Discussion

As

set forth in the applications (and accompanying material), Defendants defaulted on repayment of the agreement, and pursuant to the terms of the Agreement and Guaranty, there is now due to Plaintiff the sum of \$42,035.31, together with default interest, and other fees and costs. Upon default, Plaintiff had the right to recover the equipment (hereinafter the "Collateral"), which is a 2019 Crown SP 3520-30 Narrow Aisle Lift Trucks-Narrow Aisle Order Pickers, VIN/Serial# 1A570869 with a market value of \$18,000. Plaintiff has been unable to exercise that right due to Defendants' lack of cooperation.

Merits

Here, the court finds the applications comply with CCP § 484.020 (i.e., statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued), CCP § 484.030 (i.e., application supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based), and CCP § 484.090 (i.e., the plaintiff has established the probable validity of the claim upon which the attachment is based).

Notice

Notwithstanding,

at the times prescribed by CCP section 1005(b), the defendant must be served with summons and complaint, notice of application and hearing, and the application and supporting evidence. (CCP § 484.040; see also Weil & Brown, Cal Prac Guide: Civ Proc Before Trial (TRG 2025), § 9:833.) Here, there is no POS as to the summons and complaint. As for these two applications, notices were filed, though it is unclear where/manner in which they were served.

Bond

As

for bond, as set forth in CCP section 515.010, a writ of possession may not issue until the plaintiff has filed an undertaking. (See also 6 Witkin, California Procedure (6th ed.), Provisional Remedies § 6 [A bond or undertaking is almost always a condition of granting a provisional remedy]; see, e.g., Stevenson v. City of Sacramento, 55 Cal. App. 5th (2020) 545, 555 [requirement of filing an undertaking is the “default rule”].) Notwithstanding, subsection (b) carves out an exception: “If the court finds that the defendant has no interest in the property, the court shall waive the requirement of the plaintiff’s undertaking....” As set forth in subsection (a) of the statute, “The value of the defendant’s interest in the property is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant’s interest in the property.” Here, Plaintiff explains that Defendant has no interest in the collateral based upon the following calculation: the fair market value of the Collateral covered by the Agreement and Guaranty in this case is \$18,000.00 but Defendants owe \$42,035.31 (plus more) such that Defendants’ interest in the Collateral is in the negative. Accordingly, absent any equity/interest in the collateral, Plaintiff is not required to post a bond to have Writ of Possession issued.

Regarding bond, the court will seek clarification as to the proposed orders in that (i) they appear to seek Defendant post a bond. (See paragraph 5(d)) and (ii) at paragraph 3(b) states Plaintiff has filed an undertaking.

All in all, as Plaintiff/creditor has established a prima facie claim to have Defendants’/debtor’s asset/the collateral seized and held as security for eventual satisfaction of any judgment obtained and that the attachment is not sought for any purpose other than to secure recovery on the claim upon which the attachment is based (i.e., it is not sought simply to obtain a settlement advantage, out of personal animosity, or for any other ulterior purpose), the court intends to grant the applications contingent upon clarification of notice.

Conclusion

Based

upon the foregoing, the applications are TBD/likely granted.